

Local WIC Agency Application Process

Policy: The State Agency evaluates and selects Local Agencies based on the selection criteria outlined in the application, available budget, and cost effectiveness of proposed local agency operations. New Local Agencies must complete the application and be approved before contracting or receiving funding from the State Agency program. Local Agencies enter into agreements with the State Agency annually.

Regulation: CFR 246.4(a)(5)(i) and (7) and 246.5

Procedure/Guidance:

After the receipt of a complete application, the State agency shall notify the applicant agency in writing of the approval or disapproval of its application. When an application is disapproved, the State agency shall advise the applicant agency of the reasons for disapproval and of the right to appeal as set forth in § 246.18. When an agency submits an application and there are no funds to serve the area, the applicant agency shall be notified that there are currently no funds available for Program initiation or expansion. The State agency may fund more than one local agency to serve the same area or special population as long as more than one local agency is necessary to serve the full extent of need in that area or special population.

The State Agency must, when seeking new local agencies, publish a notice in the local media (unless it has received an application from a local public or nonprofit private health agency that can provide adequate services). The notice will include a brief explanation of the Program, a description of the local agency priority system, and a request that potential local agencies notify the State agency of their interest. In addition, the State agency will contact all potential local agencies to make sure they are aware of the opportunity to apply. If an application is not submitted within 30 days, the State agency may then select a local agency in another area. If sufficient funds are available, a State agency will give notice and consider applications outside the local area at the same time.

The State Agency may conduct periodic reviews of the qualifications of authorized local agencies under its jurisdiction. Based upon the results of such reviews the State Agency may make appropriate adjustments among the participating local agencies, including the disqualification of a local agency when the State agency determines that another local agency can operate the Program more effectively and efficiently. In conducting such reviews, the State Agency shall consider the factors listed in regulation in addition to whatever criteria it may develop. The State Agency may require reapplication by Local Agencies at any time as necessary due to operational, budgetary, or policy requirements.